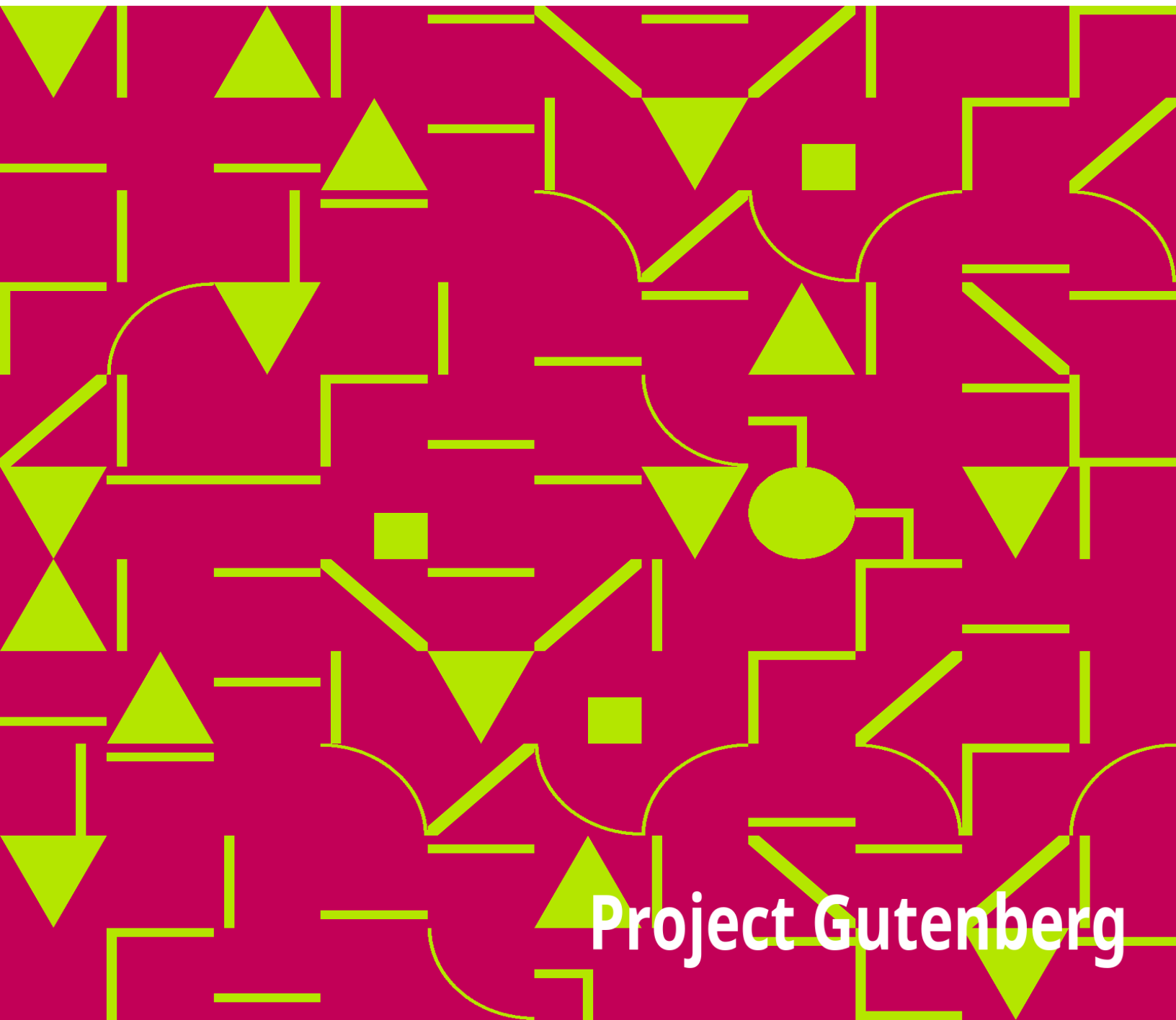


# Statement of Facts, on the Injurious Treatment of J. Elsee, Esq.

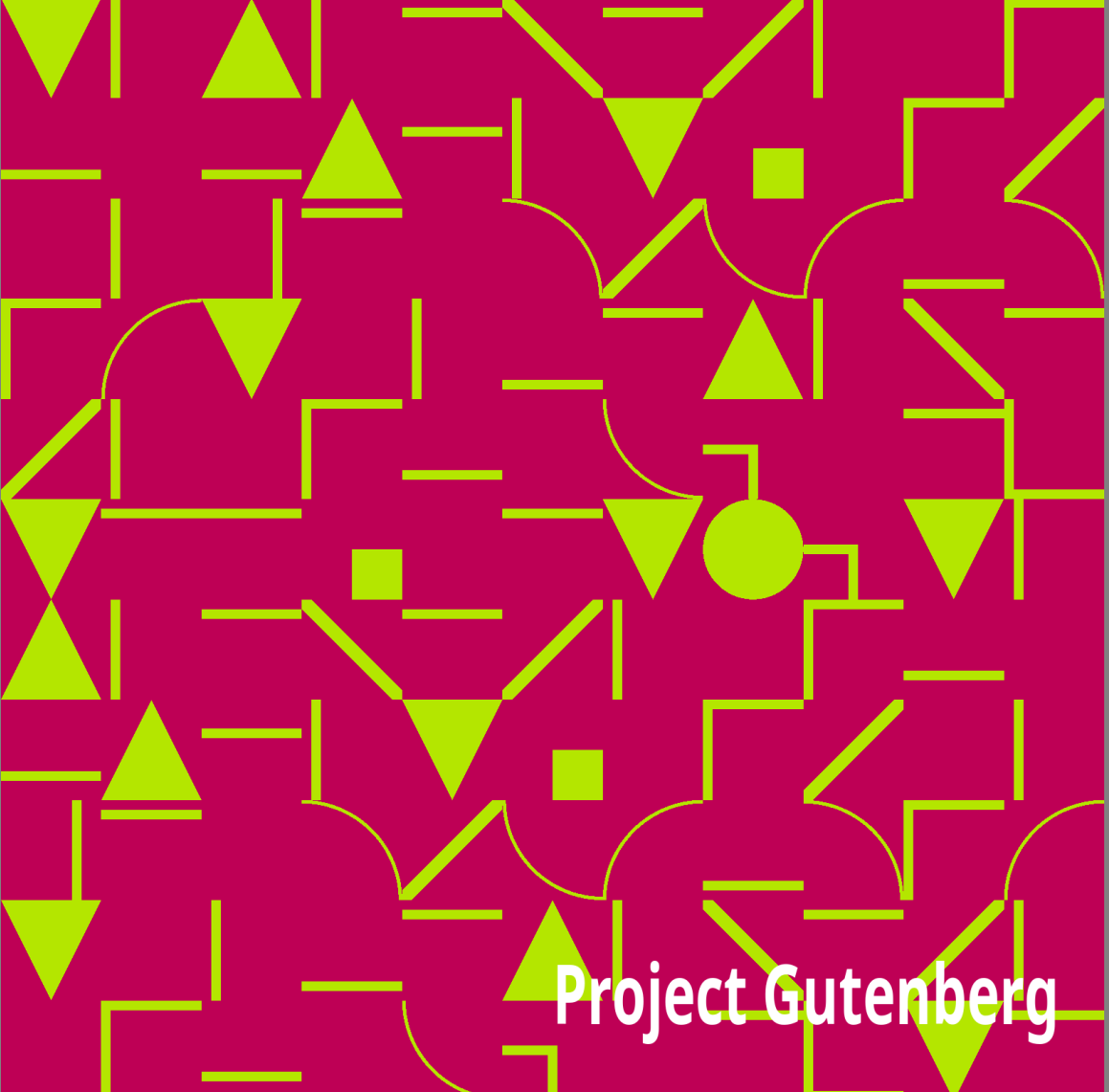
John Elsee



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A decorative pattern of various geometric shapes, including triangles, squares, circles, and lines, in shades of yellow and green, set against a dark green background.

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**Statement of Facts,**  
**ON THE**  
***INJURIOUS TREATMENT***  
**OF**  
**J. ELSEE, ESQ.**

*Late Tenant of a considerable Portion of Havering Park Farm,  
in the Forest of Hainault,*

IN  
CERTAIN TRANSACTIONS  
WITH THE  
**Commissioners of Woods and Forests,**  
AND THEIR AGENTS.

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*Compiled in support of*  
A RENEWED MEMORIAL TO THE COMMISSIONERS,  
AND  
PETITIONS TO PARLIAMENT.

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TO WHICH ARE ADDED  
**NOTES,**  
*In Illustration of the Gross Abuses of the Forest Laws.*

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WOOLER, PRINTER, GOUGH SQUARE.

1826.

## STATEMENT, &c.

THE statements which will be found in this pamphlet, will probably startle the minds of most persons who may give them a perusal; reflecting as they do upon the administration of justice, and the conduct of an official board, which is invested with the power of transacting certain business in the name of the crown, and on behalf of the nation. In such cases, the highest degree of liberality might reasonably be expected. Those petty interests that sow dissensions between individuals *ought not* to exist in transactions between individuals and the representatives of the national authority; and, certainly, no *prejudiced motives*, or *personal feeling*, should be permitted to operate to the prejudice of the weaker party. Unfortunately, however, persons who ought to rise infinitely superior to all paltry hostility, and mean jealousies, do not always separate their prejudices from their duties; and they are also often led by the nose by impertinent and interested servants, who, in reality, become the masters of their nominal superiors, and dictators to those whom it is their business to obey.

Much injustice is frequently occasioned in such manner; but after a perusal of our narrative, we think we may fairly challenge the production of any instance in which so much pecuniary injury has been sustained, accompanied by so much outrage to the feelings of a respectable, unoffending, and highly meritorious individual;—upon one, who, during a long and active life, in public and private, has conducted himself in the most exemplary manner; against whose reputation no one has ever dared to point the finger of reproach, and who having gained a considerable fortune by his own unaided exertions, the most persevering industry, and the most scrupulous integrity in his dealings, had an undoubted right to expect the protection of his interests by persons who were acting as trustees for the nation; instead of being insulted, and entrapped into legal difficulties by their agents, and plundered of a large sum of money, without the slightest

pretence for, or justice in, such an outrageous attack upon the sacred right of private property.

And when, in addition to this, the reader shall reflect, that these occurrences took place within a very few miles of the metropolis, and were directed against an individual well-known and highly respected, both in his own neighbourhood and the metropolis itself, the scene of his prosperous exertions for so many years, the astonishment will be proportionately encreased; for if the rapacity and insolence of the servants of a public board can be audaciously exhibited towards an individual so situated in life, what misery and ruin may they not have entailed upon the poor and defenceless, who are prostrate at the feet of such oppressors. Mr. Elsee, to whom our narrative relates, has fortunately escaped the *total ruin*, with which he was unblushingly threatened—but the sacrifices which he has been compelled to make, might have *broken the hearts*, and *exhausted the means*, of hundreds who would have thought themselves possessed of a competency for the wants of a respectable subsistence. <sup>[81]</sup>

With these requisite preliminary observations, we shall proceed with our narrative, premising also, that these pages are written in illustration and support of *memorials to both the houses of parliament*, as well as to the commissioners of woods and forests, for such redress as Mr. Elsee has yet a just right to expect will be afforded to him, if the honest attention of the principals in the latter office can be drawn to the subject; for the agents of government can have no true or lasting interest in the injury of any one of his majesty's subjects; and the liberal principles lately adopted by some of the most influential of his majesty's advisers, encourage a hope that their liberality may be extended to the actual administration of impartial justice, and not be confined to empty parliamentary professions.

Mr. John Elsee, at the period to which this narrative refers, was a gentleman residing on his own freehold estate, at Chigwell Row. He had been many years in business as a wholesale stationer, in Queen-hithe, in the premises now occupied by the Lord Mayor, and this part of the city became the market for paper by the exertions of Mr. Elsee. Having realized a considerable property, he retired from business, and having spent the earlier portion of his life in agricultural business, he purchased a freehold in the neighbourhood before mentioned, and became also the lessee of part of

Havering Park farm. This farm, containing altogether about 1000 acres, was held under the crown, by a lease granted in the time of King William and Queen Mary, to John Hampden, and Thomas Lovell, at a nominal rent; it afterwards became the property of the Ladbroke family, and was divided into two farms, one being let by Ladbroke to a Mr. Thomas Hall, and the other to Mr. Elsee, whose lease expired in 1815, and he continued as *tenant at will* to Miss Ladbroke, three of the family which had granted his lease having died during its continuance; and Miss Ladbroke told Mr. Elsee that she did not intend to apply for a new lease. Mr. Elsee, therefore sent in a memorial in the usual way, having been told at the office that Miss Ladbroke's lease would expire at Lady-day, 1818, *but to such memorial Mr. Elsee never received any answer; though it had been the usual practise, for many years, on the part of the commissioners of woods and forests, and land revenues, to signify by printed papers, affixed in their public offices, and in other ways to make it publically known, that if no application was made by the tenants holding under lease of the crown, two years before the expiration of their old leases, to renew their holding, the commissioners would consider themselves open to receive proposals from any other persons, to treat for a lease or leases of such premises.*

In the summer of 1817, Mr. Edward Driver, the surveyor to the land revenue department, informed Mr. Elsee that he was not to pay any more rent to Miss Ladbroke's executors, that her lease had expired at Lady-day *then last past*, and that in future the rent must be paid to the crown. From this Mr. Elsee conceived the hope of obtaining the lease himself, the more especially as Mr. William Masterman, *had been in a situation precisely similar, on the expiration of his landlord's lease*, and the commissioners had granted him a new lease for 31 years, charging him for the interval between the expiration of the old lease, and the day of his entering upon the new one, *only the same rent which his former landlord had paid to the crown.*

At this time, Mr. Driver said he was going to seize the other part of the land comprized in the lease of Miss Ladbroke, and held by Mr. Hall, for dilapidations. Mr. Driver subsequently *made this seizure*; and then *requested Mr. Elsee to take Mr. Hall's farm into his hands*, until the final decision of the commissioners respecting the disposal of the land was made known, it being then uncertain whether it would be let or sold. Mr. Elsee declined this proposal, being every year a considerable loser by the part he

held, and only retaining it in the expectation of having *his rent reduced*, and obtaining a lease *on such terms as might warrant him in the outlay necessary to afford a prospect of an adequate return*; and in the intention of becoming a purchaser, if the commissioners should decide upon the sale of the land.

Besides this, Mr. Elsee felt that he had strong personal claims to fair dealing, if not to liberal treatment, from the commissioners; as, at their request, he had exerted himself in the protection of crown rights in the forest, which were grossly infringed by their own servants. He had assisted to detect and bring to justice the *under-keeper*, the *king's woodward*, and others, *for stealing timber from the forest*, a practice then carried on to a great extent. <sup>[15]</sup>

Under all the circumstances, therefore, Mr. Elsee had a right to expect something like *justice*, if not liberality, on the part of the commissioners; and if he had been in their hands, instead of *the hands of their servants*, he probably might have obtained it.

While in this state of suspense respecting a new lease, Mr. Driver repeatedly informed Mr. Elsee, that he had received offers for the farm previously occupied by Mr. Hall, at three times the rent which Mr. Elsee considered it to be worth, and three times as much as it was afterwards let for to a Mr. Ellis. This statement, whether true, or otherwise, had the effect of preventing Mr. Elsee from making any further offers, *particularly as his previous application for a lease remained unanswered*; and he urged Mr. Driver to get the amount of the rent fixed which he was to pay to the crown, for the time after the expiration of Miss Ladbroke's lease, *and to name any period when the crown wished to take possession of the land*. Mr. Driver replied, that *if Mr. Elsee would continue to hold the farm until Michaelmas, 1819, (that was another year) he trusted that all would be settled by that period*, and he would very shortly let Mr. Elsee know the amount of rent that he was to pay, *but which was never done*.

Some time elapsed without an arrangement and from the harsh conduct of Mr. Driver to Mr. Hall, and other crown tenants, when circumstances had placed them in his power, Mr. Elsee became uneasy, and *wrote to request positive information as to how, and when, he was to settle with the crown*,



*and surrender possession of the farm.* In answer to this letter, Mr. Driver referred Mr. Elsee to Mr. Pillar, the chief clerk; and on application to that gentleman, he said, *he was surprized that Mr. Driver sent to him, as he did not think that the commissioners would object to any arrangement that Mr. Driver might think proper to make;* from which it may be inferred, that the affair was left entirely to that gentleman, from whom, in a few days, Mr. Elsee received the following letter.

New Bridge-street, Oct. 12, 1818.

Dear Sir,

I have been out of town the whole of last week, or I intended to have written to you, on the subject of the farms at Havering. I now beg to inform you the Commissioners have not come to any determination as to the time of letting either of the farms, only they are to be let, and not sold; and have desired me to obtain offers from any person desirous of treating with me for a lease of either of the farms. I shall therefore feel myself happy to receive in writing any proposal that you may be disposed to make, and it shall be forwarded in the proper way, in the same manner as some other offers already made will be forwarded. I shall be prepared very shortly to make some agreement with you, as to your present holding, and, for your continuing until Michaelmas next, before which time I hope and trust the whole of those farms will be disposed of in some way or other.

I am yours, most truly,  
E. DRIVER.

The farms not being to be sold, as Mr. Elsee had been induced to hope they would be, and the conditions in some printed particulars forwarded to him by Mr. Driver, not appearing to leave room for any advantageous holding under the crown, he declined making any proposals, and was only anxious to get extricated as speedily as possible from the farm, *which he had continued to hold at the earnest request of Mr. Driver, and with a view to facilitate any arrangements on the part of the crown; as every day's holding was injurious to Mr. Elsee, when he ceased to have the prospect of being either the purchaser or lessee.* <sup>[19]</sup>

The farms, however, were let before the Christmas of 1818; and Mr. Elsee requested Mr. Driver to inform the gentleman who had taken them, and had entered upon that of Hall, that Mr. Elsee was desirous of letting him have possession of the other, and to sell him any thing upon the premises, whenever it would suit him. Mr. Driver promised to communicate this offer to the new tenant, and then, for the first time, said, *“he had not yet done with Miss Ladbroke’s executors; that he meant to make them pay, double the rent that Mr. Elsee had paid them, for the time he had held the farm, since her lease expired, as she had never given the crown possession of that part of the land.”*

Mr. Elsee thought it impossible the Surveyor could be in earnest, in such a monstrous and ridiculous proposition; and replied, *“surely, you obtained possession, when you entered on Hall’s part; for at the time you surveyed Hall’s part of the farm, and took possession of that, you also went over and surveyed the part held by me; and you know very well that possession has been offered to you again and again. You have also given me directions to get boards painted and fixed up at different parts, of both farms, to warn people from sporting and shooting, and you have afterwards paid me for these things, while I have done every thing in my power to accommodate you, by staying on the farm at your own particular request.”*

This reply should have been conclusive, for if the crown were not in possession, the fault rested only with its own Surveyor. No wish to hold over was entertained either by the executors, or by the tenant at will; nor was there, in fact, any holding over, for Mr. Driver had taken actual possession, had directed the rent to be paid to the crown, and acted as the possessor of the property on behalf of the crown. It was therefore a paltry quibble, and a meanness of which any landlord should have been ashamed, to have taken advantage of a mere informality, if it had existed, which however does not appear to have been the case, *as the land had only been held at all at the Surveyor’s own particular request.*

Mr. Driver, however, for some purpose of his own, thought proper to disregard the justice of the case, and replied that “Mr. Elsee was not the tenant of the crown; that Miss Ladbroke’s executors had behaved very ill; that there was no complaint whatever against Mr. Elsee, who could come upon the executors for any injury that he might sustain; that he (Mr. Driver)

was determined to bring an action of ejectment against the executors; that Mr. Elsee's crops would be seized on the premises the next summer, and that he might sue the executors for the damages." <sup>[23]</sup> Mr. Elsee, who saw in the consequent expence nothing but mischief to all parties, except Mr. Driver, if the threat were really carried into execution, waited upon the solicitors of the executors of Miss Ladbroke, informed them what had passed, and begged them to see Mr. Driver, and make an arrangement to prevent the seizure of the crops, and the unpleasant results of such a litigation.—These respectable solicitors, Messrs. Windus and Holtaway, were not to be frightened; they knew the man they had to deal with, and after some severe remarks on the Surveyor's conduct, they declared that they would have nothing to say to him, that they had never held over, and that he might do his worst.

With this answer Mr. Elsee returned to Mr. Driver, who had left word that the report was to be made to Messrs. Jones and Green, the solicitors to the office of woods and forests, to whom Mr. Elsee repaired, and *was then informed by Mr. Jones that he did not think the crown would require more rent than had been paid to Miss Ladbroke*; but that he would see Mr. Pillar, and make enquiry at the office, and acquaint Mr. Elsee with the result; which, by the bye, he never did.

The Surveyor proceeded as he had threatened he would, with his action of ejectment; and during its progress, he forwarded a long agreement to Mr. Elsee for his signature, the effect of which was to put him in the place of the executors, when judgment should have been obtained against them, and leave him entirely at the mercy of the crown. This agreement, too, had been framed without any consultation with Mr. Elsee, upon its conditions, some of which were contrary to the custom of farming leases, and all of them framed in opposition to the situation and interest of a *tenant at will*, which the Surveyor had declared him to be, *and not in any way a tenant of the crown*. This attempt to encrease the responsibility of Mr. Elsee was answered, of course, by a refusal to sign it; the agreement was returned, and Mr. Elsee waited upon the Surveyor, and pointed out to him that he was not liable to *any conditions*, and still less to the unreasonable ones attempted to be imposed upon him—that there was no legal claim upon him for dung <sup>[25]</sup>—that he had paid for it on his entrance upon the farm, and it would be his property when he should give up possession. To this the Surveyor replied,

*that he had let the farm on such conditions, and the new tenant was to do the same during his lease.* It was then enquired by *what right* the Surveyor made such conditions with respect to *this farm in particular*, since *he had not made them with respect to Heaton's?* The Surveyor made answer, that they "*would be made to leave all their dung,*" which, however, *was not the case*, for in the following summer the crops of that farm, and *also the dung*, were sold by the owner. <sup>[26]</sup>

It was further remarked to the Surveyor in this conversation, that *spit dung* was specified, and that it was not always to be procured; to which the Surveyor said it was so stated in all leases, meaning that, or an equivalent in other manure. Mr. Elsee again insisted that the dung was as much his property as the hay and corn; and further objected to the expence of the agreement as *unnecessary*, as the Surveyor *knew* he was ready to quit the farm at any time. The Surveyor, notwithstanding all this, held to his purpose, <sup>[27]</sup> and pretended that the thing must be done *regularly*; that the whole of the expence would not be more than 60*l.* or 70*l.* that the crown would pay half, and would further give time from Michaelmas 1819, to the following Lady-day, to thrash out the corn, and otherwise dispose of the property to the best advantage—that the crown besides would pay for all *improvements, laying down ploughed fields to grass, &c.* In spite of these temptations Mr. Elsee refused to sign; had he remained firm in this refusal, and acted upon the advice of his friends, many of whom recommended him not to put himself in the power of the Surveyor by his signature, he might have saved himself some thousands of pounds, and a degree of personal and family anxiety even more to be deplored than his pecuniary loss. <sup>[28]</sup>

In this time the Surveyor had proceeded in his action of ejectment, and as the day for the service of the declaration approached, Mr. Elsee was applied to for his final decision as to *signing the agreement*; and he found himself compelled to submit, even as it was, with a reference to arbitration as to terms, &c. or to close the doors upon all reconciliation, and entail upon his property the disastrous consequences of *a law-suit, with the crown for an antagonist.* <sup>[29]</sup>

In this dilemma, the agreement, in an unfortunate moment, *was signed*, and the consequences proved still more mischievous than those which the signing was intended to prevent; Mr. Elsee being soon plunged into the

legal embarrassments that it had been his earnest hope, and most anxious desire to avoid, by the very act that involved him. <sup>[31]</sup>

The leading articles of this fatal agreement, were, that Mr. Elsee, *against whom the action neither was, nor could have been brought*, should sign a Warrant of Attorney in ejectment, *he, moreover, having been throughout anxious to quit*; and for thus burthening himself with a responsibility apparently attempted to be saddled on the executors of Ladbroke, it was stipulated that he should have the land without rent from Michaelmas, 1819, to Lady-day, 1820—to be paid for seed sown upon not less than 40, nor more than 60 acres—to leave 60 load of hay, and all the fixtures in the house—to be paid for laying down ploughed land to grass, and his other improvements—to be accountable for dilapidations, if any, since the termination of Ladbroke's lease—and arbitrators to be appointed to ascertain what rent should be paid for the 2½ years since the expiration of the lease: and out of this sum the agreement set forth, as under, the sums due to Mr. Elsee should be deducted, and allowed to him.

“And the said W. Huskisson, W. Dacres Adams, and Henry Dawkins, do hereby agree for and in behalf of his Majesty, to and with the said John Elsee, his executors, and administrators, to submit to, and abide by the decision and determination, so to be made as aforesaid, and that whatever sum or sums of money shall be so as aforesaid awarded to be paid by them to the said John Elsee, for the value of the said fixtures, seeds, and the hay to be left as aforesaid, and as a compensation for laying down any of the lands as aforesaid, shall be allowed to be retained by him, his executors, administrators, and assigns, out of any sum which shall be awarded to be paid by the said John Elsee to them, for the use and occupation of the said premises, or for any other of the matters aforesaid.”

Mr. Driver and Mr. R. Peake were the parties appointed as arbitrators, to settle the matters at issue, the former acting for the crown, and the latter for Mr. Elsee. On the 14th of July, 1819, they met, and rode over the farm, and took an account of the house fixtures. They next went into the stack-yard, and the Surveyor agreed to take for the crown, for the 60 load to be left by the agreement, a stack that the men were just finishing, and the first made that season, the price to be fixed by the arbitrators.

Mr. Elsee proceeded with these two gentlemen to Mr. Ellis, the new tenant, and Mr. Elsee offered to give up the farm at that time, and to sell the incomer any thing upon it.—Mr. Ellis declined this offer, but wished to treat for some fields, which lay convenient to those he had entered upon. These were ten fields, containing 108 acres of unmowed grass, with the use of 17 acres of fallow in addition. The two arbitrators were to fix the value, and they left the room for that purpose, but returned without agreeing, as Mr. Driver would allow the fields *to be worth no more than ten shillings an acre, although the grass fields contained the whole years crop.* Yet this same gentleman, required from *these very fields, so valued by himself at ten shillings an acre,* a return in dung and rent of *about five pounds an acre!*—So different were his powers of appreciation, when employed for and against Mr. Elsee.

It was, however, agreed at this meeting, that Mr. Ellis should buy five fields of wheat straw, there being none in the farm upon which he had entered, which was to be paid for at Michaelmas, 1819; and as the straw was required in part for thatching the stacks of the season, Mr. Elsee, being anxious to accommodate the new tenant, agreed to commence thrashing as soon as the harvest was got in. All matters were to be left to the arbitrators, as Mr. Elsee supposed, in a friendly way; and the new tenant having agreed, on the proposition of Mr. Driver, to take the stack of hay previously reserved for the crown, Mr. Peake's clerk, to prevent any misunderstanding, drew up the following.

### Memorandum.

|                                                                           |       |   |    |       |
|---------------------------------------------------------------------------|-------|---|----|-------|
| Mr. Elsee proposes to carry the corn (wheat) from the two courses, No. 20 | 9     | 3 | 11 |       |
| No. 23, 24, & 25                                                          | 10    | 2 | 2  |       |
|                                                                           | Acres |   |    | 20113 |
| And also No. 27, beans                                                    |       |   |    | 14318 |
|                                                                           | Acres |   |    | 35031 |

And to allow Mr. Ellis, an equivalent in good rotten dung, in lieu of the straw of the before mentioned, to be delivered upon the bean-field, No. 27, at the rate of so many cubic yards, to be ascertained after it is in a proper heap.

Mr. Ellis to purchase the straw of the following wheat crops, due allowance being made for the dung which must be brought in lieu of it, if removed from the farm by Mr. Elsee.

|                     |     |   |    |
|---------------------|-----|---|----|
| No. 8, Church plain | 20  | 0 | 0  |
| Brook field         | 22  | 3 | 0  |
| Shed field          | 32  | 0 | 0  |
| Lodge field         | 11  | 0 | 0  |
| Ditto               | 16  | 3 | 22 |
| <i>Acres</i>        | 102 | 2 | 22 |

Mr. Ellis takes the green stack of hay which is now finished stacking this day, at the value as per agreement, (that was at the same price the crown paid Mr. Elsee.)

The crops of corn to be thrashed out by Mr. Elsee, by the 25th of March; and he to commence and continue thrashing immediately after harvest, and the straw to be bound if required, at the expence of Mr. Ellis.

Mr. Ellis to have the liberty of taking away the thrashing machine by the 25th of May.

Mr. Elsee to have the use of one stable, and the barn for thrashing, and accommodation for the carman, and the present tenant and family in the house, until Lady-day.

Mr. Elsee to have the barn field until Christmas next.

The dung to be valued by measure.

Mr. Elsee to pay all rent, taxes, and outgoings up to Michaelmas.

As soon as the beans are off any field, Mr. Ellis is to enter if he pleases to broadshare, and Mr. Elsee to put his stock upon it.

The chaff to be divided equally between Mr. Elsee and Mr. Ellis.

R. Peake and E. Driver to value all the above, and if they should disagree, Mr. Edward Mee to decide between them; and the two former to meet within one month, to ascertain the quantity of straw, and the value thereof to be fixed, and paid for at Michaelmas next.

Signed, JOHN ELSEE.  
JAMES ELLIS.

Witness, R. DAVIS.

This agreement, of course, was not made in the most distant intention of invalidating the original agreement with the commissioners, nor could it legally have any such effect, the commissioners not being in any way parties to it; yet such an effect was produced by the arbitrators, to the serious injury of Mr. Elsee; *for they left him to seek payment from the new tenant for the hay, fixtures, &c. which it was stipulated should be deducted from the rent due to the crown; and the crown was made to demand in a most peremptory manner, the whole of an enormously unreasonable award in its favour, when Mr. Elsee, if he had been fairly dealt with, even according to the conditions of the agreement, which he had signed without any business to do so, would have been a creditor, instead of a debtor of the crown.*

Upon the memorandum we have quoted, it is necessary to remark, that the two fields of wheat which was carried to Chigwell Row, contained only 18 acres tenant's measure, and the whole produce was carried at 13 loads, with three horses. The weeds and rubbish of the bean field was four loads, *the bean crop having entirely failed*, making together 17 loads. Mr. Elsee took these crops for the straw, and proposed to bring back all the spit-dung in his yard at Chigwell Row, and lay it in a proper heap for measurement; and whatever excess of quantity there might be in reference to the wheat straw, was to be set off against the dung to be brought on account of the hay that might afterwards be carried from the farm. This was agreed to, and a place pointed out for its being brought to.



About a month from this date, the arbitrators met, and rode over the farm, to view the crops, and see the dung that had been carried. They measured one dung-hill, 75 feet long, 11 wide, and 3 deep. There was a second behind the hedge, but they were so very zealous in the discharge of their duty, and so very clever, *they thought it unnecessary to measure it.* They then proceeded to the 26 and 16 acre field, and looked at the dung and chalk rubbish which had been carried there; and went on to Havering to dinner. Neither on this occasion, nor on the 14th of July, did they attempt to go into any business, nor did they give Mr. Elsee any opportunity, as he had a *right to expect, of proving by several respectable farmers, who had long known the farm, the value of the respective crops in every field; and of the improvements that had been made.* It was impossible to arrive at any just conclusion, *without giving Mr. Elsee an opportunity of stating his own claims, and of knowing the nature and extent of the claims preferred against him, on many points of which explanations would be necessary.* This reasonable expectation, however, was totally disappointed; and Mr. Elsee heard nothing from the parties who had thus assumed to themselves *the right of disposing of his property without enquiry,* until the 29th of September, *the time when Mr. Ellis was to have paid Mr. Elsee for what he bought;* but instead of receiving his money from Mr. Ellis, he only received information *that the time for the settlement of matters between the commissioners and himself had been extended for a month.*

In the mean time, Mr. Ellis had completed nothing on his part of the agreement; *but he had taken away a large quantity of bean straw, sent his teams and people to take possession of the farm, pitched his hurdles, and put his large flocks of sheep into the barn mead, and continued to fold them in the very field which he had agreed Mr. Elsee should hold possession of till Christmas, and for which the new tenant was to receive half the wheat chaff.* Mr. Ellis kept continually fetching the straw, hay, and chaff, *though it had not been appraised,* and his taking possession of the field which Mr. Elsee should have had until Christmas, *drove the cattle of the latter into the stable, and they consumed the oat and bean straw, chaff, &c.* In this situation of affairs, and *the new tenant being a total stranger to Mr. Elsee,* he wrote to his attorney to ascertain in which way he should act, *as the agreement seemed null and void, or held in defiance by the other party, and as much neglected by the referees.*

While in such suspense, in the *November* ensuing, without any more communication with the arbitrators, or any acquaintance with their proceedings, except that Mr. Driver and Mr. Peake could not agree, Mr. Elsee received an award to pay to the crown the enormous sum of £2066: 3s.: 10½*l.* without any allowance whatever, and without any reference to the credit side of Mr. Elsee's account. We subjoin the award, that the document may assist the commentary.

**To all to whom these presents shall come,**

I the within named Edward Mee, sending greeting, Whereas the within named Edward Driver, and Robert Peake could not agree upon the premises within referred to them, and make their determination in regard thereto in writing under their hands, on or before the first day of September now last past, so that it devolves upon me, the within named Edward Mee, as umpire within mentioned, as appears by a memorandum in writing, made and written at the foot of the within agreement or submission, and signed by the said Edward, Driver and Robert Peake, NOW KNOW YE, that I, the within named Edward Mee, having taken upon myself the burden of the said umpirage, and having duly weighed, considered, and examined the several matters and things so in difference, and agreed to be referred as with to mentioned. DO, by this my award, umpirage, and final determination in writing, between the parties in difference, of and concerning the premises within agreed to be referred, award and determine in manner and form following, that is to say. That the within named John Elsee do at the office of Messrs. Jones and Green, between the hours of ten and twelve o'clock in the forenoon, on Monday, the 29th day of November next ensuing, pay, or cause to be paid, unto the within named William Huskisson, William Dacre Adams, and Henry Dawkins, or the commissioners for the time being of his Majesty's woods, forests, and land revenues, the sum of 1,888*l.* 9s. 10½*d.* of lawful money of Great Britain, in full of all claims and demands of them the said commissioners, on behalf of his Majesty, or otherwise howsoever against the said John Elsee, his executors, or administrators, of or touching, or in any manner whatever concerning, or having relation to the matters in difference, and agreed to be referred as within particularly mentioned, save and except that the said John Elsee, his

executors, administrators, and assigns, shall and will bring back and lay upon the farm and land stated and referred to in the within written agreement, or submission, in a husbandlike manner, two cart load of good rotten dung, or an equivalent proportion of other equally good manure, for every load of hay which has been, or may at any time hereafter be carried off and from the said farm and lands as aforesaid, from the 15th day of February last past, by the said John Elsee, his executors, administrators, or assigns, without claiming, or requiring any compensation for the same.

I, the said Edward Mee, having had due regard to, and having made just allowance for any permanent benefit, which may have been done by him to the estate, by laying down any of the arable land, and converting the same into meadow or grass land. AND I do further award, and determine that the said John Elsee, his executors, or administrators, do at the same time and place aforesaid, pay, or cause to be paid unto the said William Huskisson, William Dacre Adams, and Henry Dawkins, or the commissioners for the time being of his said Majesty's woods, forests, and land revenues, the sum of 177l. 14s. of like lawful money, as the said John Elsee's proportion, or moiety, of all and singular the costs of the ejectment, and of preparing the within mentioned agreement, expences, costs, charges, and expences, as well of the said Edward Driver, and Robert Peake, as of me, the said Edward Mee,

In witness whereof, I the said Edward Mee have hereunto set my hand, this 30th day of October, 1819.

Signed, EDWARD MEE.

Witness, THOMAS BRACE, Surrey-street, Strand.

THOMAS SELBY, jun. same place.

Such an award as this, when Mr. Elsee *expected to receive, rather than to pay*, it will be allowed was enough to startle any man; and we do not doubt of convincing every unprejudiced reader, that more atrocious injustice was never perpetrated under the form of legal proceedings.

In the first place, the umpire says, “*he has duly weighed and considered the matters in difference.*” To this the short answer is, that *he did not*; and for as short a reason, viz. that *he could not have duly considered the matter, without an examination of witnesses, and an enquiry into facts, which were never made, either by the arbitrators, or by himself.* It does not appear, that the umpire ever made any proper survey, nor that he ever in any mode acquainted Mr. Elsee with any part of his proceedings; and yet he asserts that he had *duly considered everything!* He cannot even pretend that he gathered his information from the arbitrators, which he had no business to take, if they had been ever so well qualified to give; *but the arbitrators had been equally regardless of their duty*; they had done nothing themselves, but left every thing in confusion, and could only tell Mr. Mee that *there was a difference between them in the slovenly estimate they had made.* This difference it was the duty of the umpire to have settled by a proper enquiry, *which the umpire did not make*, and therefore he did not *duly* consider the case.

Mr. Mee also says that he has made *just allowance* for the *improvements, &c. of Mr. Elsee.* We shall presently *shew* that he has *not made any* allowance; but, on the contrary, that he has enormously overcharged Mr. Elsee in the matter of rent, and made no deduction whatever. Besides, we submit, that the umpire ought to have set forth the articles that he estimated, and their amount; the rent at which he valued the land; and every other particular as fully as he sets forth the dung which was to be brought by Mr. Elsee. If the umpire had ventured to do this, *if he could have done it*, his *award* must have looked so palpably preposterous, that an idiot might have been ashamed of it. The only explanation we can offer of the affair is, the supposition that the umpire, instead of examining into the difference between the arbitrators, took Mr. Driver’s word, and made up this precious award under his direction.

The rent that Mr. Elsee would have had to pay the executors of Miss Ladbroke, at 375*l.* per annum, deducting the land-tax at 40*l.* 4*s.* in two years and a half would have amounted to 937*l.* 10*s.* This was all that was due to the crown, according to the *usual mode* of dealing with crown tenants; and in the case of Masterman before quoted, the commissioners did not charge him even the rent he had paid under his own lease, but merely the rent paid by his landlord under the old lease.

The case then stood as follows:—

|                                                                                                                               |      |    |      |      |
|-------------------------------------------------------------------------------------------------------------------------------|------|----|------|------|
| Mr. Elsee was indebted to the crown                                                                                           | £937 | 10 | 0    |      |
| And Mr. Elsee had the following claims, under the agreement which he had been entrapped to sign.                              |      |    |      |      |
| A new shed over the thrashing machine, made of oak from the Chigwell Row estate, and which Mr. Driver requested might be left | £50  | 0  | 0    |      |
| New brick brew-house, copper, oven, &c.                                                                                       | 150  | 0  | 0    |      |
| Paid for enclosing the waste at Romford                                                                                       | 20   | 0  | 0    |      |
| Paid for the crown towards the new market-house, Romford                                                                      | 48   | 0  | 0    |      |
| Carried forward                                                                                                               | £268 | 0  | 0    |      |
| <i>Brought forward, Mr. Elsee, Dr.</i>                                                                                        |      |    | £937 | 10 0 |
| <i>Brought forward, Mr. Elsee, Cr.</i>                                                                                        | £268 | 0  | 0    |      |
| Laying down to grass 120 acres of <i>ploughed</i> land, as by the agreement                                                   | 360  | 0  | 0    |      |
| Stack of hay chosen by Mr. Driver for the crown, and sold by Mr. Driver to Mr. Ellis                                          | 175  | 0  | 0    |      |
| Fixtures valued by Mr. Driver                                                                                                 | 30   | 0  | 0    |      |
| Land-tax <sup>[47]</sup> paid by Mr. Elsee                                                                                    | 97   | 8  | 0    |      |
|                                                                                                                               |      |    | 930  | 8 0  |
| Balance in favor of the crown                                                                                                 |      |    | £7   | 2 0  |

This account leaves a balance of *seven pounds* against Mr. Elsee; and yet the arbitrator makes him debtor, costs included, in *more than two thousand pounds*, and that too after professing to have made *due allowance* for the admitted claims of Mr. Elsee!!! who did not in any fair view of the question owe 10*l.* and with the additional expence of endeavouring to obtain something resembling justice against this award, Mr. Elsee has been a loser

of near *four thousand pounds!* where he did not owe in justice even *ten pounds*.

The first questions that arise are, how this sum could be made out?—upon what grounds the arbitrators could have proceeded?—and what *could be* the basis of the calculation?—We have before seen that Mr. Driver estimated the *whole produce* of 108 acres of some of the best land on the farm, *at only ten shillings per acre*. This was about the rent paid by Mr. Elsee to Miss Ladbroke; and this serves to prove, that *even in Mr. Driver's opinion*, the land was then let at its full value; and indeed the rent was fixed by valuation by parties for Miss Ladbroke, at a period when hay was at from 6*l.* to 8*l.* a load, and was therefore a rack rent in every sense of the word.

But if the rent were *doubled*, and the fair allowance made, the sum due to the crown would have been only 945*l.* instead of nearly *two thousand!* And surely the *doubling of the rack rent might have satisfied the consciences of any arbitrators and umpires*. But no—it is only by supposing that *this rack rent was trebled—that land the produce of which was only valued at ten shillings an acre, was charged a rent of thirty shillings an acre*—we can arrive at something like the calculation of the umpire! Is not this *a most wretched mockery of arbitration?* It would be difficult to find any words to characterise it, and it shall be left to the reader, as it is.

The costs, perhaps, merit a word or two. In order to colour the *modest charge* of *three hundred and fifty-five pounds, eight shillings, for two rides over a farm, measuring one dung-heap, and looking at another*, by Messrs. Driver. and Peake, (what trouble Mr. Mee took *not being in evidence*) the costs are said to include *the expences of the ejectment which had been so wantonly and unnecessarily incurred, and with which Mr. Elsee had nothing to do*. Besides, as the crown neither pays nor receives costs, *by what right did Mr. Mee pretend to assess them?* How came they into his umpirage?—We should like to see how they were carried to the credit of the crown. The expence of the agreement may be admitted, but the odd 55*l.* 8*s.* would have been an exorbitant charge for it; so that we shall have the remaining 300*l.* to divide amongst the parties *for not doing their duty!* We have heard of such matters, as making up a sum for the sake of the *per centage*, but we make no such charge; we are not conjurers enough to define motives—but we repeat, that either from *sheer ignorance and gross neglect, or a wilful*

*disregard of the interests of Mr. Elsee, he has been injured to the amount of several thousands.*

Another circumstance occasioned Mr. Elsee to be still more astonished at the award; and that was, *he had heard Mr. Mee declare some years before, and when hay was selling at 6l. and 8l. per load, instead of from 2l. to 4l. the price when the award was made, that he would not work such a farm as Mr. Elsee's, if he could have it rent free!* Yet being umpire, he could *treble the rent, when produce was lowered one half, and rents were being lowered by every landlord in the country.*

On receiving the award, Mr. Elsee waited on Mr. Driver, to remonstrate, but the Surveyor refused to interfere, as Mr. Mee had made his award; although he admitted that the land-tax had not been credited to Mr. Elsee, which circumstance alone called for a second reference to the umpire, but the Surveyor evaded the question, and could not be induced even to pay back this sum, which is too clearly due to Mr. Elsee to admit of any dispute.

Mr. Elsee also pointed out to Mr. Driver, that no credit was given him for the dung he had already carted on to the farm; to which Mr. Driver replied, *he supposed* it was left to set off against the wheat straw which had been carried away; and being told that there was an excess of 130 ton over what was necessary in return for the wheat straw, he *very significantly remarked, that the umpire had a different way of estimating dung to what he had ever seen before;* as he called 40 feet of spit dung a load, while he (the Surveyor) had never heard of a load being more than 27 feet. Mr. Elsee reminded him, the weight of dung, or the load, depended upon the weight of the hay or straw carried off; that if one horse was sent to market with 36 trusses of straw, which weighed 11 cwt. 2 qrs. 8 lb. then 16 feet of good spit dung, weighing 12 cwt. would be an equivalent load; and that if 54 trusses weighing 17 cwt. 1 qr. 12 lb. were taken away, 24 feet of dung, weighing 18 cwt. would be an equivalent, and the same for a load of hay. Or if 108 trusses of straw, or one ton of hay, were carried, 27 feet of spit dung was the fair return, as bringing back *weight for weight* was all that could in justice be required, by any landlord, while not one in a hundred obtained anything like so much. To all this Mr. Driver could make no sort of reply, and Mr. Elsee left him, after censuring the conduct of the arbitrators, who, *after charging so much for their trouble,* had settled nothing, not even making a

list of the fixtures, nor measuring the hay, nor crediting the amount of dung carried, nor giving him any opportunity of stating his own case.

The award did not even state *the quantity of dung that remained to be brought*, or it would have been carted at once, being quite ready for that purpose. Mr. Elsee was therefore at a loss how to act, and imagined the only way left for him was to carry the hay, and let the quantity of dung to be brought in return, be assessed by a sheriff's jury, before which he might prove the circumstances of the case;—but the servants of the crown are not to be bound by the ordinary forms of law. They have more effective instruments in their hands, and instead of being called before a sheriff's jury, Mr. Elsee was served with an exchequer process by no less a personage than his Majesty's attorney general; and an office copy of the process cost *eighteen pounds!* in which it was set forth a dozen times over, that he had taken from Havering Park farm 300 loads of hay, and had not brought back 600 loads of dung, for which the crown laid its damages at *six hundred pounds*.

The consideration of this proceeding carries us back to another part of the conduct of the arbitrators and the umpire, namely the agreement with Mr. Ellis. In this instance, there could hardly have been any occasion for an *umpire*. *There was but little to do, and of the commonest description of the business of valuation, and part of the business, as the valuation of the fixtures, and the stack of hay, was settled;* but these arbitrators *were determined to have things done regularly*, and as Mr. Mee had been made umpire in the other affair, *he was also made umpire in this business, and made his award one month after the time that Mr. Elsee ought to have been paid for the property.* As there are some remarks to be made upon this document, it is inserted.

### **Inventory of Valuation,**

Made this 29th of October, 1819, by me, the undersigned, being appointed by Mr. John Elsee and Mr. James Ellis, under an agreement dated the 14th day of July last, as umpire between Mr. Edward Driver, of New Bridge Street, Blackfriars, London, and Mr. Robert Peake, of Waltham Abbey, Essex, who had been appointed by Mr. Elsee as out-going tenant, and Mr. James Ellis as in-coming tenant, on a farm called



Havering Park farm, at Havering, in Essex, to value the following property, viz.

All the straw, and half the chaff that arises from 196 acres of land, except the straw used for thatching, which is to be left when taken off the stacks.

The straw at a foddering price on the premises.

Three stacks of hay, in the stack yard, at a foddering price.

The fixtures in the house.

The straw to be bound by Mr. Elsee's men, when thrashed, and to be paid for binding the customary price of one shilling per load, by Mr. Ellis, if he chooses to have it bound.

The above property is valued by me at the sum of Three Hundred and Eighty-four pounds, Eighteen shillings, ready money.

EDWARD MEE.  
South Hall, Raynham, Essex.

£384 18s. 0d.

To this decision there came appended, as if by afterthought, the annexed addition, viz.

The dung is to be brought back for all other hay carried off, according to the agreement. [\[56\]](#)

EDWARD MEE,  
South Hall, Raynham, Essex.

And then came the subjoined bill of costs, duly made out in the name and on behalf of *the firm*.

Messrs. Ellis and Elsee,

To Messrs. Driver, Peake, and Mee.

1819.

|                                                                           |     |    |   |
|---------------------------------------------------------------------------|-----|----|---|
| Oct. 29, To valuation of property, as per inventory, at 2½ per cent. each | 28  | 17 | 6 |
| Stamp                                                                     |     | 15 | 6 |
|                                                                           | £29 | 13 | 0 |

Half to be paid by each party.

This award, it will be seen by a reference to the original agreement, page [35](#) and [36](#), is founded on the principle of charging the hay and straw *at a foddering price*, a thing never contemplated by Mr. Elsee, and to which he would not have agreed under any circumstances, *but that the award was delayed until Mr. Ellis was in possession of the farm, and a great portion of the property*; and though he did for a long time refuse to take the money from Mr. Ellis, and insisted upon the crown's paying him for what its Surveyor had bought, he was ultimately obliged to take what he could get from the new tenant. <sup>[57]</sup>

Upon this second award, we must say that *the umpire has a way of his own for other things as well as for estimating loads of dung*. He values the articles at 384l. 18s. This valuation may have been a *sort of off-hand guess*, as if it had been quite immaterial to Mr. Elsee what became of his property, as we have already stated that he was never consulted as to its disposal. But as we happen to know the items, we may afford the reader some means of judging of the nature of the award, by putting something like a fair value upon them.

|                                                                                  |     |   |   |
|----------------------------------------------------------------------------------|-----|---|---|
| The fixtures had been previously valued by Mr. Driver for the crown, at          | 30  | 0 | 0 |
| 123 loads of hay, at 60s.                                                        | 369 | 0 | 0 |
| 196 acres of straw, at their own estimate of two load per acre, at 25s. per load | 480 | 0 | 0 |
| Chaff                                                                            | 10  | 0 | 0 |

|                                                                                                  |     |     |
|--------------------------------------------------------------------------------------------------|-----|-----|
|                                                                                                  | 889 | 00  |
| From which deduct the sum paid by Mr. Ellis to Mr. Elsee by Mr. Drivers order, <sup>[59]</sup> . | 349 | 110 |
| And we shall have a loss to Mr. Elsee of                                                         | 539 | 90  |

The loss sustained in this transaction, in which Mr. Elsee embarked solely with a view of accommodating all parties, and of carrying into effect the wishes of the Commissioners, as expressed by their surveyor, *was upwards of five hundred pounds*; the sum which was ultimately paid him he did not receive for three years, *in consequence of the unauthorised transfer of the debt of the crown to Mr. Ellis, and which might have been lost altogether, if any misfortune had befallen the latter gentleman*; and these things, coupled with the order to pay down the enormous sum awarded to the commissioners, *render it impossible to conclude that Mr. Elsee has been justly dealt with; and there will neither be law, nor equity, left to boast of, if a revision of these proceedings cannot be obtained, against the influence of Mr. Driver.*

If any such circumstances had existed in an agreement between private subjects, there is no question but that both the awards would have been easily set aside; but with the crown for an antagonist, and the equity side of the exchequer for the scene of action, a contest was indeed desperate, in the face of the enmity of a leading agent of the powerful party; so that after Mr. Elsee had presented a memorial to the commissioners, who were *induced probably by some misrepresentations from going into the merits of the case*; and after having disputed the validity of the general award, on the trial of an information in the nature of an action for debt, filed upon it by the Attorney General, the result was what might be very naturally anticipated, from the conditions of the agreement which he had been entrapped to sign. He was compelled to pay the sum that had been awarded, and to bear the additional expence of his useless endeavour to protect his own interests. At this period the losses of Mr. Elsee amounted to *about three thousand pounds*, but he was destined to be a still greater sufferer. We have before mentioned that the Attorney General filed an exchequer process for certain dung, claimed under the agreement, instead of the more simple, cheap, and equitable mode of sending the matter for assessment to a sheriff's jury. Now, though Mr.

Elsee had no business to have signed such a document, he was of course bound by its conditions when he had done so, and was ready to comply with them, and to carry back two loads of dung for every load of hay, and one load of dung for every load of straw carried off.—The dung was ready for the purpose; and he only waited *to know what was to be brought, and to obtain credit for what he had carried, which he never had been able to do.*

The exchequer process terminated in a reference to Mr. Bolland, whose general reputation stands on high ground; but who appears in this instance *to have wanted that degree of practical knowledge, which was requisite to enable a referee to appreciate the value of the testimony given on both sides of the question*; and it is difficult to guess at the principles that governed the decision, except on the supposition *that Mr. Bolland is a better lawyer than he is a farmer.*

Mr. Elsee attended to prove that he had carried *a large quantity of dung*, which he estimated, and proved by his witnesses, left 130 ton to his credit, *after deducting the quantity in return for the wheat straw.* He then shewed by his *books*, in which the accounts of every day had been regularly entered, in a way that set all contradiction and suspicion at defiance, and by the production of the market tickets, that the gross amount of all the hay carried from the farm, amounted to 119 loads; and that the account stood as follows:—

|                                                                                                    |     |   |   |
|----------------------------------------------------------------------------------------------------|-----|---|---|
| All the hay and straw taken from the farm consisted of 119 loads of hay, weighing 18 cwt. per load | 107 | 2 | 0 |
| 47 loads of straw, at their estimation, weighing 11 cwt. 2 qrs. 8 lb. per load                     | 27  | 5 | 0 |
| 166 loads, or tons                                                                                 | 134 | 7 | 0 |

This straw was carried corn and all to Chigwell Row, at 17 loads, with three horses, but called 47 one horse or nominal loads of 11 cwt. 2 qrs. 8 lbs. and the quantity of dung to be returned as under stated:—

|                                                   |     |   |   |
|---------------------------------------------------|-----|---|---|
| 47 one horse loads, at 11 cwt. 2 qrs. 8 lbs. each | 27  | 5 | 0 |
| 119 loads of hay, at 18 cwt. each                 | 107 | 0 | 0 |

|                                         |     |    |
|-----------------------------------------|-----|----|
| Add 119 loads to make two for one       | 107 | 00 |
| The whole quantity of dung due, in tons | 241 | 50 |

The dung admitted to have been carried, consisted of 143 tons, and therefore about 99 tons in addition would have balanced the account. The value of this dung, at 5s. per load was 25*l.* and at *this price any quantity could be obtained at Romford, as Mr. Elsee proved by various respectable witnesses.* Yet after this statement, can it be believed that Mr. Bolland should award Mr. Elsee to pay the sum of 336*l.* 16s. 6d. besides *all the expences of the witnesses on both sides, and half the expences of the reference!* To us, this is utterly unaccountable.

Such witnesses on the other side, as Mr. Driver and Mr. Mee, *had their previous conduct to justify*, if possible; and Mr. Driver, who on a former occasion had told Mr. Elsee that he had never heard of more than 27 feet to a load of dung, stated now, upon his oath before Mr. Bolland that *fifty-four feet of spit-dung was a load*, and that too as a set off against a nominal load, namely 36 trusses, weighing 11 cwt. while 54 feet of dung weigh 42 cwt.

Mr. Mee, who was said by Mr. Driver to have a way of his own when he estimated 40 feet to a load, found it necessary to *alter*, but *not to mend his ways*; for not thinking Driver's jump from 27 to 54 feet would make out the calculation on their side, *even far the one dung-hill which they did measure, but never cast up the contents at the time*, he finally came to the conclusion that *sixty feet of dung made a load!*—a piece of information, we are bold to say, that no farmer ever heard of before. <sup>[65]</sup>

The absurdity and contradiction of the evidence against Mr. Elsee were really preposterous. For instance, Mr. Mee measured six stacks of hay 168½ loads, 250 feet to the load; and Mr. Harding measured the same stacks at 256 loads, 216 feet to the load.

We have already disposed of this question, in page [52](#), where the principle of *weight for weight* is clearly defined; and upon this plain principle, it is submitted, *Mr. Bolland ought to have decided.* It was mere nonsense to go into any enquiry as to what was a load; there must be a *determined standard between the things*, or otherwise the condition of the agreement was a *nullity*, and Mr. Mee and Mr. Driver might with equal justice have

demand *barge loads*, or even *ship loads* of dung, in exchange for *cart loads* of hay. The obvious intention of the condition is to secure weight for weight for the straw, and double the weight, or two loads for one of hay. When, therefore, the weight of the hay and straw was determined, the required quantity of dung was also determined, and it only remained to be ascertained how much had been carried, and what there was still to be brought; and making every allowance for Mr. Bolland's want of agricultural information, it is odd that he could overlook so evident a rule of conduct.

Another point to be considered, is that Mr. Elsee *was not permitted to carry the dung so improperly awarded to be due*; but *he was compelled to pay in money*, at the rate of *twenty shillings per load*, when he could have bought it at *five*, and when, besides, he had it already *provided for the purpose*; and the basis of this price was the assertion that *it would cost 20s. to fetch a three horse load from London!* Thus the quantity is first exaggerated beyond all reason, and against the evidence of the facts, and then the dung is refused, and a four-fold price demanded in its stead. <sup>[67]</sup>

The following extract is made from Mr. Elsee's instructions to his attorney, when the reference was proceeding, and it is inserted to demonstrate that he was desirous of nothing but an equitable adjustment:

"Every thing depends upon proving the quantity of dung, over and above the small quantity of straw taken away, only 27 tons 13 cwt. 1 qr. 12 lbs, according to their estimation. And they take it landlord's measure, 20 acres, instead of 18, and make 40 nominal loads, when in fact there were only 13. Let us only establish the quantity of dung, and then I will make the following proposal, as I have kept a sufficient quantity of dung always by me, on purpose to carry, whenever I knew how much would satisfy. Let them state the price of the dung per load, to be paid in money in one month, or the dung to be delivered in two months, double the weight of the hay taken away, that is two loads for one, after allowing for what has been carried, and let me choose which I will do, and that will save all disputes about the value of the dung. Or if they like it better, I will state the price, and they shall choose either money or dung." <sup>[69]</sup>

In more distinct illustration of the losses of Mr. Elsee, we offer, from *indisputable documents, which are ready to be produced*, an abstract of the expences and proceeds, of the farm for the last year of his holding, and also an abstract of the expences consequent upon his signing the agreement prepared by Mr. Driver.

|                                                                      |      |    |     |       |    |   |
|----------------------------------------------------------------------|------|----|-----|-------|----|---|
| Proceeds of the whole farm                                           |      |    |     | £2606 | 15 | 0 |
| Expences of cultivation, harvesting, &c.                             | 1717 | 17 | 0   |       |    |   |
| Paid Jones and Green                                                 | 2066 | 3  | 10½ |       |    |   |
| Three years interest on the money for the hay, &c. sold to Mr. Ellis | 72   | 0  | 0   |       |    |   |
| Mr. Driver's charge for oat and bean straw valued by mistake         | 35   | 7  | 0   |       |    |   |
| Articles that the crown ought to have paid for                       | 930  | 8  | 0   |       |    |   |
|                                                                      | 4821 | 15 | 10½ |       |    |   |
| Deduct the proceeds                                                  | 2606 | 15 | 0   |       |    |   |
| And we have a LOSS of                                                | 2215 | 0  | 10½ |       |    |   |

Besides these losses, Mr. Elsee is a considerable loser by Mr. Mee's valuing 94 acres of oat and bean straw, namely all the straw upon the farm, when no such thing was ever mentioned, or thought of, either by the new tenant or Mr. Elsee; as the wheat straw and the field are particularly mentioned in the memorandum made at the time, July 14, so that instead of making an allowance for dung upon 96 acres of wheat, at what they call a load, at 2 load to an acre, or 192 load of dung, they have deducted from the valuation of Mr. Elsee's property 392 load of dung at 12s. per load, (as he has been informed) making 215*l.* 12s. but afterwards, when they found their mistake, and Mr. Driver and Mr. Mee were fearful that upon this and other points the award would be set aside, Mr. Driver became very cautious, and refused to interfere, saying it was all Mr. Mee's doing, *and pretty doing it was*.

When Mr. Elsee applied to Mr. Ellis for the payment for some seed beans and land rolls, and the two stacks of hay sold him in September, he said he would pay for the things as valued by Mr. Mee. To this Mr. Elsee objected,

and having found Mr. Mee in Romford Market, he told him in the presence of the new tenant that he had no right to mix the property of the crown and what had been sold to the new tenant together; and that as Mr. Ellis wanted to settle, and he wanted his money, if the umpire would look into his books, and say the value of the two hay-stacks, and the wheat straw, although valued ever so low, he would, according to his agreement, take the money, and settle with the new tenant, but that he had no right to mix the things to be paid for by the crown with the other property; and that as to the oat and bean straw, not one word had been mentioned about selling it, by any of the parties, as it was never intended to be sold, *that* and the hay from the stacks at Windmill Hill being all the cattle had to live upon from Michaelmas to Lady-day; and that as to the award, he was confident it must be set aside, as the allowance for dung to which they had no claim amounted to more than the rent owing to them; and as he had agreed to enable Mr. Driver to fulfil his engagement with the new tenant, by furnishing him with dung for the ensuing crops, the arbitrators surely did not mean to make him pay over again in money. Mr. Mee appeared confused, *and refused to state the value of the hay and straw separately.* With respect to the oat and bean straw, when Mr. Driver found it was not intended to be sold, *he himself furnished Mr. Ellis with the amount, and ordered him to deduct it out of the sum to be paid; this Mr. Driver could do, independent of Mr. Mee; but the charge against Mr. Elsee for the 188 load of dung, and the 7½ per. cent. for making the charge unjustly, he entirely omitted to notice!*

The following additional particulars are to be taken into the account of the sum total of the loss sustained.

|                                                                                                                                                                         |     |    |   |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|---|
| Mr. Elsee was obliged to allow for the 96 acres of wheat straw, sold to Mr. Ellis, no less than 392 load of dung, at 12s. per load                                      | 235 | 4  | 0 |
| For the hay to Mr. Ellis 123 load, at two load for one, 246 load at 12s. per load                                                                                       | 147 | 12 | 0 |
| For the 18 acres of wheat, taken to Chigwell Row, at 13 load & 4 load of rubbish, Mr. Elsee delivered 200 dung cart load of good rotten dung and chalk, at 5s. per load | 50  | 0  | 0 |
| For dung left in farm yard                                                                                                                                              | 100 | 0  | 0 |



|                                                                                                                                     |                |    |   |
|-------------------------------------------------------------------------------------------------------------------------------------|----------------|----|---|
| For 119 load of hay sold, and about 6 load of rubbish, tops and bottoms, taken away, Mr. Elsee paid in money by Mr. Bolland's award | 284            | 2  | 0 |
| Expencc of award and crown witnesses                                                                                                | 54             | 12 | 0 |
| Mr. Elsee's expences in the exchequer, and the award                                                                                | 320            | 0  | 0 |
| Being a charge of                                                                                                                   | £1191          | 10 | 0 |
|                                                                                                                                     | for dung only. |    |   |

Thus was Mr. Elsee, in one year, deprived of more than *three thousand pounds*, as the result of his anxious desire to oblige the Commissioners, and to accommodate the views of Mr. Driver. To this alone has this injustice—we had almost called it *robbery*—been owing. As a tenant at will, he would have been only liable to his customary rent; he could have carried off his crops, sold the dung, removed his fixtures, and left a worthless occupancy to the crown; but because he was anxious to accommodate himself to the best interests of all parties, *and incautiously put himself in the hands of Mr. Driver*, he has been marked out for a series of wrongs and oppressions that are scarcely to be credited; but it is yet to be hoped that he may obtain redress. The *blame* at present may rest only with the inferior agents of the crown, and the Commissioners have the means, nor shall we doubt of their disposition to do right; but if their servants can intercept the claim for justice, there is no step left but an appeal to the legislature to expose the wrong, and prove that the boast of *equal law* is an idle mockery in England.

We shall now proceed to shew, from the quantity of meadow land, *that no such quantity of hay could have been grown, as that for which the dung was claimed*. This we shall do by inserting the following document, of the authenticity of which there can be no question, as it is a copy of the estimated quantity of the land, arable and meadow and pasture, made by Mr. Driver himself, and printed in the proposals for letting the farms, when they were taken by Mr. Ellis.

### **Particulars of Land from the letting Catalogue.**

| No. | Names of the Fields.    | Arable. |    |    | Mead & Pas. |    |    | Land mown |    |    |
|-----|-------------------------|---------|----|----|-------------|----|----|-----------|----|----|
|     |                         | A.      | R. | P. | A.          | R. | P. | A.        | R. | P. |
| 1   | House, homestead, &c.   |         |    |    | 2           | 3  | 1  |           |    |    |
| 2   | Orchard                 |         |    |    | 2           | 0  | 27 |           |    |    |
| 3   | Plat                    |         |    |    | 2           | 0  | 24 |           |    |    |
| 4   |                         |         |    |    | 1           | 2  | 0  |           |    |    |
| 5   | Barn field              |         |    |    | 13          | 0  | 5  | 12        | 0  | 0  |
| 6   | Lodge field             | 16      | 3  | 32 |             |    |    |           |    |    |
| 7   | Foreberry               |         |    |    | 21          | 3  | 0  | 20        | 0  | 0  |
| 8   | Church plain            | 45      | 1  | 12 |             |    |    |           |    |    |
| 9   | Ditto                   |         |    |    | 0           | 3  | 32 |           |    |    |
| 10  | Lower brook field       | 17      | 0  | 11 |             |    |    |           |    |    |
| 11  | Ditto                   | 6       | 3  | 33 |             |    |    | 6         | 0  | 0  |
| 12  | Ditto                   | 2       | 1  | 39 |             |    |    |           |    |    |
| 13  | Bourn bridge mead       | 3       | 1  | 24 |             |    |    |           |    |    |
| 14  | Ditto                   |         |    |    | 13          | 3  | 19 | 12        | 0  | 0  |
| 15  | Lower outer course      | 14      | 1  | 27 |             |    |    |           |    |    |
| 16  | Lower inner ditto       | 10      | 0  | 4  |             |    |    |           |    |    |
| 17  | Upper brook field       | 22      | 3  | 0  |             |    |    |           |    |    |
| 18  | Lodge field ) in one    | 15      | 2  | 14 |             |    |    |           |    |    |
| 19  | Shedfield hill ) in one | 38      | 1  | 16 |             |    |    |           |    |    |
| 20  | Middle inner field      | 9       | 3  | 11 |             |    |    |           |    |    |
| 21  | Middle outer field      |         |    |    | 9           | 0  | 16 |           |    |    |
| 22  | Upper ditto             |         |    |    | 6           | 3  | 32 |           |    |    |
| 23  | Upper inner course      | 1       | 2  | 11 |             |    |    |           |    |    |

|            |                      |     |   |    |     |   |    |     |   |   |
|------------|----------------------|-----|---|----|-----|---|----|-----|---|---|
| 24         | Upper inner course   | 3   | 3 | 22 |     |   |    |     |   |   |
| 25         | Upper inner course   | 6   | 2 | 20 |     |   |    |     |   |   |
| 26         |                      |     |   |    | 34  | 3 | 8  | 32  | 0 | 0 |
| 27         | The twelve acres     | 14  | 3 | 18 |     |   |    |     |   |   |
| 28         | Windmill Hill        | 10  | 2 | 10 |     |   |    |     |   |   |
| 29         | Windmill Hill        | 11  | 1 | 19 |     |   |    |     |   |   |
| 30         |                      | 8   | 0 | 26 |     |   |    |     |   |   |
| 31         | Great sand hill      | 4   | 0 | 9  |     |   |    |     |   |   |
| 32         |                      | 17  | 0 | 23 |     |   |    |     |   |   |
| 33         | Little sand hill     | 9   | 1 | 1  |     |   |    |     |   |   |
| 34         | Eighteen acres       |     |   |    | 20  | 0 | 18 |     |   |   |
| 35         | Pound field          | 22  | 3 | 0  |     |   |    |     |   |   |
| 36         | The twenty six acres | 28  | 2 | 0  |     |   |    |     |   |   |
| 37         | The new mead         |     |   |    | 16  | 2 | 34 | 14  | 0 | 0 |
| 38         | The twenty acres     | 26  | 2 | 26 |     |   |    |     |   |   |
| 39         | Williper hill        | 23  | 3 | 5  |     |   |    |     |   |   |
| 40         | The fifty acres      |     |   |    | 46  | 1 | 3  | 44  | 0 | 0 |
| The hoppet |                      |     |   |    |     |   |    | 3   | 0 | 0 |
|            |                      | 392 | 1 | 13 | 192 | 2 | 22 | 143 | 0 | 0 |

The first column contains the quantify of arable, and the second of meadow and pasture land, estimated by landlord's measure, that is including roads, ditches, &c. This also includes the homestead, farm-yard, &c. places which certainly could not be mowed for hay. In the third column is given the real quantity of land that was mowed, not including the *waste land*, and land newly laid down to grass.

Of the meadow laud, there were 143 acres, which was estimated by Mr. Elsee's opponents themselves as producing  $1\frac{1}{4}$  load per acre, and this

would amount to about 178 loads. There were 81 acres, which was estimated to produce three quarters of a load per acre, and this amounts to about 60 loads. The waste land comprized about 56 acres, which was estimated at half a load an acre, making about 33 loads. Adding these together, we have a total of 271 loads, as the whole produce of the meadow land; and from this is to be deducted 123 loads which were valued to Mr. Ellis, and this leaves only 148 loads to be accounted for by Mr. Elsee. Of this quantity, as appears by his books he has sold 119 loads, the remaining 29 being eaten by his cattle on the premises. Nothing can be clearer than this detail, the facts and figures of which speak for themselves.

Another corroboration of this calculation is to be found in Mr. Mee's award, (*see page 55*) which amounts to 384*l.* 18*s.* but deducting 35*l.* 7*s.* for the oat and bean straw, 10*l.* for the chaff, 30*l.* for the fixtures, and 29*l.* 13*s.* for his expences, leaves only 279*l.* 18*s.* for 132 acres of the best meadow land, and 100 acres of wheat straw.

### **Supposed Expences of this 132 Acres, sold to Mr. Ellis and the Crown, in Three Stacks.**

|                                                                                                                   | £   | s. | d. |
|-------------------------------------------------------------------------------------------------------------------|-----|----|----|
| To bush harrowing, rolling, fencing, &c. at 5 <i>s.</i> per acre                                                  | 33  | 0  | 0  |
| Mowing, making, carting, stacking, thatching, &c. at 20 <i>s.</i>                                                 | 132 | 0  | 0  |
| Taxes, interest of capital, and labour                                                                            | 66  | 0  | 0  |
| Forty-six acres fallowed in 1813, ploughing four times, harrowing, rolling, picking, &c. at 60 <i>s.</i> per acre | 138 | 0  | 0  |
| Twenty five acres of it dunged with good spit dung, 20 load per acre, at 10 <i>s.</i> per load                    | 250 | 0  | 0  |
| Rent and taxes in 1818 upon forty-four acres                                                                      | 46  | 0  | 0  |
| Seed for one hundred acres, 250 bushels at 8 <i>s.</i>                                                            | 100 | 0  | 0  |
| Ploughing, sowing, harrowing, preparing seed, &c. at 20 <i>s.</i>                                                 | 100 | 0  | 0  |
| Hoeing, weeding, and fencing, at 10 <i>s.</i> per acre                                                            | 50  | 0  | 0  |

|                                                             |      |    |   |
|-------------------------------------------------------------|------|----|---|
| Reaping, harvesting, carting, stacking, thatching, &c. 20s. | 100  | 0  | 0 |
| Housing, threshing, dressing, and carrying out, at 20s.     | 100  | 0  | 0 |
| Taxes at 10s. per acre                                      | 50   | 0  | 0 |
| Expences                                                    | 1165 | 0  | 0 |
| Mr. Mee's valuation                                         | 279  | 18 | 0 |
| 159 quarters of wheat                                       | 580  | 11 | 0 |
| Produce                                                     | 860  | 9  | 0 |
| Total Loss                                                  | £304 | 11 | 0 |

### An Account of the Hay stacked at Windmill Hill.

|                                                                                                                                                                                                                                                                                                                                                                                          | £   | s. | d. |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|----|----|
| Eighty-one acres of meadow, supposed to produce one load and a quarter per acre, bush harrowing, rolling, fencing, &c. at 5s. per acre                                                                                                                                                                                                                                                   | 20  | 5  | 0  |
| Mowing, making, stacking, thatching, and fencing, at 20s.                                                                                                                                                                                                                                                                                                                                | 81  | 0  | 0  |
| Eleven load cut from stack in Havering Park in September, at 25s.                                                                                                                                                                                                                                                                                                                        | 13  | 15 | 0  |
| Sixty-five acres not worth ploughing, which had lain two or three years, and from which Mr. Elsee meant to get a crop of oats the last year, but Mr. Driver and Mr. Ellis both requested him not to plough it; to oblige them, therefore, Mr. Elsee mowed it, and got perhaps half a load an acre, hardly worth the labour, it being chiefly water grass and bracken. Cost of getting in | 50  | 0  | 0  |
| Taxes upon this 146 acres at 10s. per acre                                                                                                                                                                                                                                                                                                                                               | 73  | 0  | 0  |
| From the above produce 119 loads were sold, the charges on which were as follows:—cart hire 13s. binding 3s. market hire 4s. 1d. extra expences and turnpikes 6d. truss of hay and feed while loading 3s. making together 23s. 7d. per load                                                                                                                                              | 140 | 6  | 6  |

|                                                                                                            |      |      |   |   |
|------------------------------------------------------------------------------------------------------------|------|------|---|---|
|                                                                                                            |      | £378 | 6 | 6 |
| Proceeds, highest price 3 <i>l.</i> 18 <i>s.</i> per load, lowest price 2 <i>l.</i> 6 <i>d.</i> —119 loads | 472  | 6    | 0 |   |
| Waste hay, say worth                                                                                       | 46   | 0    | 0 |   |
| Total produce                                                                                              | 518  | 6    | 0 |   |
| Deduct expences                                                                                            | 378  | 6    | 6 |   |
| Net produce                                                                                                | £139 | 19   | 6 |   |

### **Expences upon the 20 Acres of wheat carried to Chigwell.**

|                                                                          |      |      |    |   |
|--------------------------------------------------------------------------|------|------|----|---|
| Fallowing in 1818, ploughing four times, harrowing, rolling, picking, &c |      | 60   | 0  | 0 |
| Seed wheat, fifty bushels, at 8 <i>s.</i> per bushel                     |      | 20   | 0  | 0 |
| Ploughing, sowing, &c.                                                   |      | 20   | 0  | 0 |
| Rent and taxes in 1818                                                   |      | 20   | 0  | 0 |
| Hoeing, weeding, &c. at 10 <i>s.</i> per acre                            |      | 10   | 0  | 0 |
| Cutting, carting, and harvesting                                         |      | 20   | 0  | 0 |
| Threshing, dressing, and delivery                                        |      | 20   | 0  | 0 |
| Taxes in 1819, at 10 <i>s.</i>                                           |      | 10   | 0  | 0 |
|                                                                          |      | £180 | 0  | 0 |
| Produce, 30 quarters 1 bushel of wheat                                   | 146  | 0    | 0  |   |
| 13 load of straw, at 40 <i>s.</i> per load                               | 26   | 0    | 0  |   |
| Loss upon this twenty acres                                              | 8    | 0    | 0  |   |
|                                                                          | £180 | 0    | 0  |   |
| Loss upon 232 acres valued to Mr. Ellis                                  | 304  | 1    | 10 |   |
| Loss upon the twenty acres of wheat                                      | 8    | 0    | 0  |   |

|                                |      |    |   |  |
|--------------------------------|------|----|---|--|
|                                | 312  | 11 | 0 |  |
| Profit upon 146 acres of grass | 139  | 19 | 6 |  |
| Net Loss of 398 acres          | £172 | 11 | 6 |  |

Mr. Elsee's statement of the land mowed is in strict corroboration of the printed particular, as given in to the arbitrator, in the following document.

| <i>Hay stacked at Windmill Hill, and disposed of by Mr. Elsee.</i> |                       |        |     | <i>Hay stacked at Havering Park, and taken by the Crown and Mr. Ellis.</i> |                       |        |     |
|--------------------------------------------------------------------|-----------------------|--------|-----|----------------------------------------------------------------------------|-----------------------|--------|-----|
| No. I.                                                             |                       |        |     | No. I.                                                                     |                       |        |     |
|                                                                    |                       | Acres. |     |                                                                            |                       | Acres. |     |
| 14                                                                 | Bourne Bridge         | 12     |     | 5                                                                          | Barn mead             | 12     |     |
| 26                                                                 | Long Mead             | 32     |     | 7                                                                          | Forebury              | 20     |     |
| 27                                                                 | New Mead              | 14     |     | 11                                                                         | Brook bottom          | 6      |     |
| 38                                                                 | Part of twenty acres  | 4      |     | 40                                                                         | Part of Williper hill | 28     |     |
| 40                                                                 | Part of Williper Hill | 16     |     |                                                                            |                       | —      | 66  |
| 44                                                                 | Collier row hoppet    | 3      |     |                                                                            |                       |        |     |
|                                                                    |                       | —      | 81  |                                                                            |                       |        |     |
| No. II.<br><i>Waste Land.</i>                                      |                       |        |     | No. II.                                                                    |                       |        |     |
|                                                                    | Windmill hill         | 16     |     | 41                                                                         | Collier row           | 20     |     |
|                                                                    | Great sand hill       | 16     |     | 42                                                                         | Ditto                 | 10     |     |
|                                                                    | Little sand hill      | 7      |     | 43                                                                         | Part of twenty acres  | 18     |     |
|                                                                    | Sixteen acres         | 16     |     | 45                                                                         | Collier row           | 29     |     |
|                                                                    | Lodge Pen             | 4      |     |                                                                            |                       | 77     |     |
|                                                                    | Collier row           | 6      | 65  |                                                                            | Deduct cut of         | 11     | 66  |
|                                                                    |                       |        | 146 |                                                                            |                       |        | 132 |

Yet it was calculated by one Harding, who was a *jobbing carpenter*, that 256 loads were to be accounted for, besides the 123 valued to Mr. Ellis, which makes 379 loads, that is 108 loads *more than the land could produce*. The question here is, *how came this carpenter employed? The arbitrators and umpire, one would think, might have measured a hay-stack, without his aid, as they knew so well how to charge for doing it.*—But they perhaps wanted some one *to bear out their statements*, and the following anecdote will shew that Harding was finely adapted for their purpose.

This Harding 20 years ago lived in Hertfordshire, where he failed as a farmer, and travelling into Essex, he followed his original business of a carpenter. Mr. Elsee was building a new house near Romford, and employed him as one of the carpenters. At the same time a bricklayer named Jervis was engaged to do the plastering by the yard, and his work to a certain extent had been measured and paid for.—But some time after Jervis informed Mr. Elsee he had made a great mistake, as the work came to *three times as much as was made of it*. After some enquiry it turned out that one of the carpenters, *this very Harding*, had been measuring it for him. On this it was remeasured, and it was found to be *less than he had been paid for*; and then Harding found out that *he had measured his feet by 3 instead of 9 to the square yard*. They were both discharged for this, but Harding took care to measure the haystack *by himself*!

After this it may not be surprising that he should say the stacks were 15 or 16 feet high, when every farmer knows they are seldom more than 6 feet to the eaves. And as further proof of his honesty and ability he said 8 inches was the average height of a truss of hay, when some of this was of the worst quality, and the trusses measured from 14 to 16 inches. This was deposed to by the hay-binders, and all the witnesses. Williams particularly said he was obliged to borrow larger carts, as the hay was so bulky, he could not load it upon his own.

A most, impertinent attempt was made to discredit the accounts of Mr. Elsee, but they happened to be kept in an old book of trading accounts, *and were folioed from the beginning more than 20 years ago*, so that any deception was out of the question. This impertinence is the more reprehensible, as coming from one who had not hesitated to *falsify* the



evidence of one John Young, whose statement *exactly corresponded* with Mr. Elsee's accounts.

Mr. Elsee is further charged with being the cause of the suit about the dung, as he refused to abide by an agreement made between him and Mr. Ellis in February, 1821, when it was agreed at Mr. Ellis's house, in the presence of Mr. W. Masterman, that each should name a friend; *but it was particularly mentioned that neither Mr. Mee, nor Mr. Driver, should have any concern in the business.* Mr. Benton, of Hornchurch, and Mr. Carter of Chigwell were named, and the White Horse, Romford, fixed as a place to meet at when convenient. Mr. Ellis wrote a paper, and read it to Mr. Elsee; it was signed, and put into Mr. Masterman's hands; in a short time the meeting was appointed, and the parties, with Mr. Carter and Mr. Benton, met in Romford market, and were about to go to business, but Mr. Ellis declined till a friend came whom he expected every minute. The parties waited more than an hour, *when who should arrive, but Mr. Mee and his Son!* An altercation took place, and the business was not proceeded in, but no one was to blame for this, except Mr. Ellis, for introducing Mr. Mee contrary to the stipulation that he was to have nothing to do in the affair. Mr. Carter and Mr. Elsee were ready to meet Mr. Benton, but refused to admit Mr. Mee and his Son. Mr. Masterman then gave the paper they had signed to Mr. Elsee, who handed it to Mr. Ellis, but the latter handed it back to Mr. Elsee, as his nephew Smith had taken a copy.

In conclusion we shall merely exhibit at one view the sum total of the pecuniary injury that Mr. Elsee has sustained directly and indirectly in these transactions.

|                                      |       |    |     |
|--------------------------------------|-------|----|-----|
| The award for Rent was               | 2066  | 3  | 10½ |
| Fixtures, &c.                        | 930   | 8  | 0   |
| Loss on Dung only, with Law Expences | 1191  | 10 | 0   |
| Half of Appraisement, paid Mr. Ellis | 14    | 16 | 6   |
|                                      | £4202 | 18 | 4   |
| Received from Mr. Ellis              | 349   | 11 | 0   |
| TOTAL LOSS                           | £3853 | 7  | 4½  |

Such a result requires no comment; but in addition to this plunder of property, there is the mental torture, and its consequent bodily suffering, which cannot be expressed.

These circumstances would have been long since laid before the public, but from various perplexities, and the very disastrous events that arose out of this ruinous litigation. For some time Mr. Elsee had hopes of being able to defend himself, as an eminent counsel told him he had a cause that would triumph in any tribunal besides the chancery side of the exchequer. And, on the reference, he was assured that nothing could destroy the decisive proof in his favor. But all this was fallacious! and only helped to involve him deeper and deeper in expensive consequences.

He has, however, though late, been able to arrange these matters for publication; and to take those steps that are yet open to him, as a British subject, to obtain redress and indemnification; and the length of time that has passed since the injury, furnishes an additional reason why justice should now be the more promptly administered.

There are various minor circumstances that accompanied this before unheard of persecution, which we purposely omit to mention, although they strongly illustrate the *system* of vindictive and malevolent hostility with which Mr. Elsee has been pursued in the course of the transactions we have detailed; but they would extend to too great a length, and we have already made out a case which needs no farther illustration. We therefore leave it in its simple and unadorned condition, to make its own way to the conviction of the reader.—If any answer can be given to any portion of our narrative, let it be made, and we shall be ready to meet any enquiry, and to justify all that we have advanced. And if no reply to our charges should be made, nor any redress afforded for the injuries we have mentioned, the party aggrieved will at least have the consolation of knowing that he has done his duty in protesting against the wrongs which have been inflicted upon him under the mask of law, and from a quarter where he ought rather to have met with protection than plunder.

To the public, and to those who are invested with authority for the security of the public interests, the judgment is referred, without any apprehension of what the public opinion will be, whatever influence may be employed to

prejudice the minds of those who have the decision in their hands, as far as the interests of the individual are concerned. To them the appeal will be forthwith made; and to complete the case, we purpose giving the result in an appendix, that a useful example may be set to other sufferers under undeserved injuries, of the advantage of a persevering pursuit of justice; or a beacon set up to warn crown tenants against putting themselves in the power of such men as Mr. Elsee has had to deal with.

## Footnotes.

[8] A striking instance occurs, on the very spot where Mr. Elsee has been insulted and plundered, of the extremity to which outrage can be carried, when the poor only are concerned. About the 1st of September, 1811, Mr. Elsee expected a few friends at his house on a shooting party, and had ordered a gun to be brought from Havering Park farm to his house at Chigwell Row. One of his servants was taking the gun, in pursuance of this order, in company with another who was driving home a team of horses. While these men were thus proceeding in their lawful business, on the public road, and in the light of day, they were shot at, without any offence, without any warning, and without seeing the lurking assassins, who thought fit to sport in this way with human life, and who turned out to be John Laver, his majesty's woodward, and John Giffin, well known on the forest as Black Jack, an under-keeper. The servant who was driving the horses was dreadfully wounded; his hand, thigh, and leg were torn by slugs and dog-shot, many of which had lodged in the flesh; and the cowardly keepers, thinking this poor fellow had suffered enough, permitted him to crawl home; but they seized the man who carried the gun, and carried him a prisoner to Hog-hill House. Mr. Elsee, after directing the man's wounds to be dressed, procured the liberation of his other servant, and obtained a warrant against the two keepers, who were brought before the Rev. Mr. Layton for examination. The fellows admitted the servants were walking quietly along the road; but they said they had heard a gun fired about that part, an hour and a half before; a most admirable reason, it must be confessed, for shooting his majesty's subjects in the high road! Laver admitted also that he had never seen the men before; and when the magistrate expressed some surprize at his conduct, his majesty's woodward, who was the person who had fired the gun, coolly answered, that he knew very well when to shoot!—Laver was committed for further examination, and as there was no proof that Giffin was aiding and abetting in the

murderous transaction, he was discharged. So far all was in the ordinary course of business; but the next examination was attended by Admiral Harvey, M.P. for the county, and one of the Verdurers of the Forest, who insisted upon it that the offence was bailable; and although this was pointedly denied by the Rev. Mr. Layton, his brother magistrate, the superior authority of that sapient member of the legislature prevailed, and the blood-thirsty woodward was actually bailed, and bailed too in the paltry sum of fifty pounds, to appear and take his trial for a capital offence. Here began the mockery of the law, and the conclusion was worthy of such a beginning. At the next assizes a bill was preferred before the grand jury, upon Lord Ellenborough's act, and Admiral Harvey, being a member of the grand jury, undertook the disposal of the affair. He began by asking the man who had been wounded, and his fellow-servant, whether they had a hundred a year? The poor fellows were day labourers, and of course were obliged to answer the impartial and enlightened questioner in the negative. Upon this, the bill was thrown out, as if cutting and maiming day labourers was no sort of offence in this land of freedom; and leaving it to be inferred, by the admiring inhabitants of Hainault Forest, that persons not possessed of a hundred a year, were as fair game to the king's woodward, and the keepers, as the vermin of the forest itself.

[15] By the exertions of Mr. Elsee, five true bills were found against the king's woodward for stealing timber. He was convicted upon the first, and not tried upon the others. But instead of being transported, a fate which might have waited an honest man, he made interest somewhere to obtain a pardon! Nor was this all; for, in a short time he was restored to his place on the forest, as if for the express purpose of affording every facility to the progress of timber stealing. As might be expected, in the following year, as Mr. Elsee and the Deputy Surveyor were riding in the forest, they found one Wilson, who had been a witness against the convicted woodward, Cowderoy, and several others, cutting down oak pollards. In this ride alone, no less than 48 stubs, or stools, of oaks were seen, that had been recently cut down without any authority; and the Deputy Surveyor told Wilson, the way they went on outstripped all their former proceedings in this respect. Yet no notice was taken of all this; and when another person, named Smith, some time after was detected in cutting down young spear oaks, in the month of October, carting them home before daylight, and hiding them on

his premises, the proper authorities were in some way or other prevented from interfering; and the law expences which were entailed upon Mr. Elsee, for his exertions to prevent such depredations, amounted to more than a thousand pounds.

[19] In the printed conditions for the letting of these farms, a very extraordinary difference was observable between that in the possession of Mr. Elsee, and the rest. This difference consisted in a stipulation respecting a certain proportion of dung to be brought in return for the hay and straw carried off the farm; a stipulation not extended to two other farms, let at the same time, and to the same person; and this stipulation had been made without consulting Mr. Elsee, although he was then merely a tenant at will, holding the land to suit the convenience of the crown, which had no claim on him for any thing beyond the rent; and as he had paid for the dung on his entrance upon the farm, it was as much his property as the hay and corn, and he had an undoubted right to take away or sell all crops, dung, &c. up to the period of his leaving the farm; nor could the crown have interfered in any way to prevent his disposing as he pleased of his own property; but Mr. Driver, under promise of some advantages and accommodations, which were never realized, induced him to sign an agreement which left him at the mercy of Mr. Driver, and the consequences were indeed disastrous to the interests of Mr. Elsee.

[23] This seems extraordinary language for the lips of an agent of a public board; and particularly after his letter, as given in page 18, where he states that he was commissioned to receive offers for the letting of the farms, which he after pretended to say had not been surrendered. Whether this was merely a contrivance to get Mr. Elsee into the dilemma in which he afterwards found himself so fatally involved, we must leave our readers to determine for themselves.

[25] The condition proposed was that two load of rotten spit dung was to be brought on to the farm for every load of hay carried off, and one load of spit dung for every load of straw carried off the farm. With this condition, as we have shewn, Mr. Elsee had no right to comply; but when he had been deceived into the signature of the agreement, he became bound for its performance, and was prepared to carry this condition into effect. He was, however, prevented from doing this, as we shall shew hereafter, by the

extraordinary conduct of the arbitrators, and their umpire, and was then compelled to pay more for the dung required under this condition than the hay and straw sold for, in addition to the cost of an exchequer process. This is being a tenant of crown land to some purpose.

[26] This fact would almost afford conclusive evidence in a court of equity, that the condition about the dung was one of the meshes of the net intentionally framed to prevent Mr. Elsee from escaping the “ruin,” that had been threatened. And such a conclusion would be further strengthened, by the total disregard of every consideration and stipulation in behalf of Mr. Elsee’s interests. We shall hereafter shew the difference observed when Mr. Elsee had to pay, and when he had to receive; and if the reader be a tenant of crown lands, he may make some use of the lesson afforded him, in similar cases.

[27] This purpose, it might be harsh to guess was a determination to do any wanton injury to Mr. Elsee; but in the face of the proof that no legal proceedings were necessary to obtain possession of the farm, and that they were persisted in when the crown could derive no benefit from them, as if with no other object than to compel Mr. Elsee to sign the agreement, of which every advantage was ultimately taken against him, while he was obstinately denied, or cunningly deprived of the benefit of the trifling stipulations in his favor, there is a very strong inference that fair play was not intended, and that the power was sought, with a wish to abuse it.

[28] Private calamity weighs but little with public men; and with some persons it may perhaps appear unimportant to state, that the anxiety and enormous expences attendant on the legal proceedings into which Mr. Elsee was plunged by the natural desire of protecting his property as far as he could, preyed so much upon the spirits of Mrs. Elsee, that there is great reason to apprehend they accelerated, and perhaps occasioned the disease which carried her to the grave.

[29] The difficulty of contending with the crown is proverbial, and the reason is obvious. The crown has always a host of legal assistants arrayed on its side, and those who in any way contest the claims set up by its agents on its behalf, are looked upon rather as culprits by certain persons, than as parties in a cause. Because the crown has no interest in harrassing the

subject, it is too hastily concluded that its agents are never influenced by improper, personal, and vindictive motives; and many a man has been ruined at the suit of the crown, for no other offence than that of not bowing low enough, or bidding high enough, to its servants. We have heard of an instance, in which a servant of the crown became the bitter enemy of one of its tenants, after having very freely partaken of his hospitality, because the lady of the official gentleman thought herself not treated with all the respect to which she imagined herself to be entitled, by the female portion of the family of the crown tenant, although it is possible that the lady had received as much as she could fairly claim, if all the truth were stated. Now an offence of this sort, committed hard upon the expiration of a lease, against one who had the ear of the great men, might produce a great many difficulties about a renewal that would otherwise have been the easiest matter in the world. If nothing could be said against the individual as a tenant, it might be hinted that his politics were not of the right orthodox description, and that his rent was a great deal too low for a friend of liberal opinions. And if any dispute should arise, out of which a law-suit could be picked, no better revenge could be devised, if every one were as unfortunate at law as Mr. Elsee.

[31] It may be asked, why was Mr. Elsee compelled to sign, as the action was not brought against him. The answer is, that his property was on the ground—that his crops would have been seized—that he would have had all the inconvenience to bear throughout, and all the expence in the first instance, with the difficulty of proceeding against executors, from whom he might not have been able to have recovered anything. Mr. Elsee, therefore, had no hope of escaping without injury, but by placing confidence in the professions that were made on behalf of the crown, and he was deceived.

[47] This, it is admitted, even by Mr. Driver, was not taken into any account, and he is obliged to admit that it ought to have been; yet when Mr. Elsee took him the receipts, and required to be reimbursed the money, upon the Surveyor's own confession that it was due, he would give nothing but evasive answers. Being pressed very closely upon the subject, he said he would not pay it then, and he has taken care not to pay it since, nor has Mr. Elsee ever been able to obtain it from anybody else. This circumstance of omitting to take the land-tax into the account, proves the necessity there was for a proper enquiry, and the examination of the party, as to claims, &c.



and this circumstance alone would have been sufficient to destroy the award, in the court of king's bench, if the case could have been taken there, instead of being pounded in the equity side of the court of exchequer.

[56] In all the proceedings the dung appears to have been a favorite consideration with Mr. Driver and Mr. Mee; and by some means or other they contrived to make Mr. Elsee pay more, in dung and money, than the crops were worth; and he would absolutely have been a considerable gainer, if he had left the hay to rot on the ground, instead of sending it to market under the conditions imposed upon him.

[57] The costs of this award are also objectionable, inasmuch as the time occupied was charged, and that exorbitantly too, in the business between Mr. Elsee and the Commissioners; and if they had thrown in the latter award, late and defective, and injurious to Mr. Elsee as it was, there would have been no great sacrifice on their part; the more especially as Mr. Elsee never agreed to the introduction of an umpire, nor agreed to be bound by the decision of any person, except the arbitrators, who were merely requested for an opinion to prevent any altercation between the buyer and seller. And the parties seem rather to have been aware that some objection might be made to paying them, so they prudently contrived to pay themselves, in the following ingenious manner. Mr. Elsee had employed Mr. Peake, at the Michaelmas of that year, to sell his farming stock, and from the produce of the sale Mr. Peake deducted the whole sum, and furnished Mr. Elsee with a receipt. This was another deviation from the award, for it required each pay to half, but then they had no money in hand of Mr. Ellis's, and the safest way was to make sure of a pay-master. The amount is only large in comparison with the duty; but it deserves notice, as one amongst many proofs that Mr. Elsee's purse was never to be spared.

[59] The award was for 384*l.* 18*s.* but this included, as the arbitrators and umpire afterwards discovered; some oat and bean straw, not intended to have been valued to Mr. Ellis; and this was deducted, three years afterwards, by Mr. Driver's orders, which proves the power of this gentleman to rectify any mistake that might be in favor of Mr. Ellis, although he could not interfere with Mr. Mee's award when the object was to do justice to Mr. Elsee, even in the small matter of the land-tax. It does not appear, however, by the Inventory that the articles sold had been much

over valued to Mr. Ellis; but if the Surveyor had ordered nothing to be paid, we suppose his order would have been omnipotent.

[65] Mr. Mee and Mr. Harding went to measure this stack of hay in December, unknown to Mr. Elsee. Now the hay was got in, in July and August; and the question here is, why the arbitrators and umpire did not measure the stack before the award was made, on the 29th of October, that the matter might have been adjusted at once, by stating the quantity of dung which was required to be brought. Instead of this, no account of the quantity of hay appears to have been taken, before this private measurement of Mr. Mee and Mr. Harding, which was thus clandestinely made to furnish evidence on the reference; and in point of justice Mr. Elsee ought to have been acquainted with this proceeding, that he might have had some one present on his part, to see the measurement was justly made. If the arbitrators and umpire had done their duty at a proper time, Mr. Elsee's presence might not have been requisite; but against this underhanded proceeding at such a rime, he has a right to protest.

[67] Mr. French, in 1805, when estimating the value of farming stock, &c. in Essex, (the same county) rates the dung in the yard, as worth only 2s. 6d. per load; and when carted and turned over, at but 3s. 6d. As he was calculating the full cost of every thing, this may be taken as a fair average of the price for the county; yet witnesses were found to rate it at 20s. per load; and, what is more extraordinary, a Referee allowed it. It may be added that this estimate of Mr. French is that of a practical farmer, that it was made in the neighbourhood of Romford, and that the object was to shew the full extent of the expence of entering upon a farm.

[69] This candid proposition, perhaps, was not submitted to the Referee, or he could hardly have declined it. Indeed, Mr. Elsee frequently wished to address Mr. Bolland himself, and point out the very clear state of the case; but he was always prevented, by a promise of some future opportunity. And when he attempted to do so, at the close of the proceedings, he was informed it was too late, and that he must sit down. Mr. Bolland then applied himself to form his award upon some grounds that we cannot understand; and arrived at the wonderful conclusion that the dung was worth considerably more than the hay fetched at market!

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